

ER Decision Checklist

Your guide when misconduct may have occurred

Work through these five steps in order. The goal is not to react quickly, but to respond fairly, consistently and confidently, following the correct process for the possible outcome.

1. Understand What Happened

- ☐ Gather facts
- ☐ Verify information
- ☐ Avoid assumptions

Ask: What happened? What do I know for certain? What information am I still missing?

2. Identify the Rule or Duty

- ☐ Check the Disciplinary Policy and other policies
- ☐ Check workplace expectations and standards
- ☐ Consider the relevant Common Law Duty

The Disciplinary Policy creates awareness of the rules and supports consistency.

3. Check Fairness (Both Sides)

- ☐ Substantive fairness: do I have a valid reason to act?
- ☐ Procedural fairness: am I following a fair process?
- ☐ Has the employee had an opportunity to respond before I decide?

Apply the five questions:

- ☐ Was there a reasonable rule?
- ☐ Was the employee aware of the rule?
- ☐ Was the rule broken?
- ☐ Was the rule applied consistently?
- ☐ What is the appropriate response?

4. Decide the Response and Process

- ☐ Focus on correcting behaviour, not punishing
- ☐ Match the process to the possible outcome:
 - ☐ Warning may apply → hold a disciplinary discussion
 - ☐ Dismissal may be possible → disciplinary enquiry, with the Fuse
- ☐ If issuing a warning, complete the warning form IN FULL before issuing it

A complete, accurate form protects fairness and creates a proper record.

5. Escalate When Required

Contact the Fuse when:

- ☐ A Final Written Warning may be required
- ☐ Dismissal may be a possible outcome
- ☐ A Shop Steward is involved
- ☐ You are uncertain of the process or action

Remember

Gather the facts. Confirm a fair reason. Follow a fair process. Complete the form in full. Seek support when needed.

A fair outcome depends on a fair reason AND a fair process.